

The Non-Pressure Stove (Quality Control) Order, 1990

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Union of India - Act

The Non-Pressure Stove (Quality Control) Order, 1990

UNION OF INDIA

India

The Non-Pressure Stove (Quality Control) Order, 1990

Rule THE-NON-PRESSURE-STOVE-QUALITY-CONTROL-ORDER-1990 of 1990

Published on 8 August 1990

Commenced on 8 August 1990

[This is the version of this document from 8 August 1990.]

[Note: The original publication document is not available and this content could not be verified.]

The Non-Pressure Stove (Quality Control) Order, 1990

Published vide Notification Gazette of India, (Extraordinary), Part 2, Section 3(1), dated 8th August, 1990, vide Notification No. G.S.R. 699 (E), dated July 12, 1990

Last Updated 26th July, 2019

In exercise of the powers conferred by Section 3 of the Essential Commodities Act, 1955 (10 of 1955

), the Central Government hereby makes the following Order, namely,-

1.

(1)

This Order may be called Non-pressure Stove (Quality Control) Order, 1990.

(2)

It extends to the whole of India.

(3)

It shall come into force on [1st February, 1992.]

[Substituted by G.S.R. 49 (E), dated 25th January, 1991.]

2.

Definitions.

- In this order, unless the context otherwise requires,-

(a)

"Non-pressure Stoves" mean burning appliances intended for domestic and commercial use, burning kerosene oil at atmospheric pressure.

(b)

["Specified Standard" means the Indian Standard Specification No. IS: 2980-1986 specified for non-pressure stoves.]

[Substituted by G.S.R. 49 (E), dated 25th January, 1991.]

3.

No person shall be himself or by any person on his behalf manufacture or store for sale, sell or distribute any non-pressure stove which does not conform to specification under this order and that it would be with ISI Certification Mark, provided that nothing in this order shall apply in relation to export of non-pressure stoves which do not conform to the specified standard but conform to any specification required by the foreign buyers and by the Export (Quality Control and Inspection) Act, 1963 (22 of 1963).

4.

The sub-standard of defective stoves or raw material components which do not conform to the aforesaid standard including the thermal efficiency specified shall be deformed beyond use and disposed of as scrap.

5.

Power of entry, search and seizure.

- [(1) Any Officer of the State Government, not below the rank of an Inspector, in the Food and Civil Supplies Department or in any other department, duly authorised by a notification published in the official Gazette by such State Government may, with a view to carry out the provisions of this Order, or for the purpose of satisfying himself that this Order or any Order made thereunder has been complied with,-

(a)

enter and search any place, premises or factory which the officer has reason to believe, has been, or is being or is about to be, used for the contravention of this Order;

(b)

seize stocks of non-pressure stoves, raw material or components which the officer has reason to believe has been, or is being or is about to be, used in contravention of this Order.]

(2)

The provisions of Section 100 of the Code of Criminal Procedure, 1973 (2 of 1974) relating to search and seizure shall, as far as may be, apply to searches and seizures under this Order.

[Substituted by G.S.R. 49 (E), dated 25th January, 1991.]

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